

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

FRANK LEWIS FLORES,

Petitioner

VS.

PUREVSUREN BAAJUUDAI FLORES,

Respondent

) Case Number: FDI-24-800346

) Hearing Date: June 30, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: EXCLUSIVE OCCUPANCY

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Frank Lewis Flores (Husband) and Respondent Purevsuren Baajuudai Flores (Wife). There are no minor children subject to this proceeding.
- 2) On 10/01/24, Husband filed a Petition for Dissolution indicating the date of the marriage is 12/15/14 and the date of separation is 9/9/24 for a marriage of 9 years and 8 months. Husband asserts that the parties have a prenuptial agreement.
- 3) On 11/13/24, Wife filed a Response and Request for Dissolution indicating the date of the marriage is 12/15/14 and the date of separation is 11/04/24 for a marriage of 9 years and 11 months. Wife disputes the validity and enforceability of the prenuptial agreement.
- 4) On 03/23/26, Husband filed a Request for Order seeking exclusive occupancy of the residence located on 39 Princeton Street, San Francisco, CA 94134 (hereafter "the property"). Husband asserts the property is separate property according to the prenuptial agreement.

- 1 5) On 03/23/26, Husband filed an Income and Expense Declaration indicating that he earns
2 \$7,449.56 in gross monthly income, has \$5,347,265 in stocks and easily sellable assets, has
3 \$1,200,000 in real and personal property assets, and pays \$6,017 in total monthly expenses.
- 4 6) On 04/16/26, Husband filed a Proof of Service indicating that Wife was served on 03/26/26 by
5 personal service, which is timely service.
- 6 7) On 06/16/26, Wife filed a Responsive Declaration in opposition to Husband's Request for Order
7 wherein Wife asserts the prenuptial agreement was in English, there was no translator or
8 interpreter present at the time of signing, and that she did not understand most of the document or
9 its consequences. Wife indicates that her gross income for 2025 was \$3,396.92 per month. Wife
10 requests that the Court deny Husband's request for exclusive occupancy, until such a time that the
11 Court has made a ruling on the issues of spousal support and attorney's fees and has allowed
12 Wife enough time to find a new home. Wife requests the Court reserve jurisdiction to issue
13 sanctions on Husband.
- 14 8) On 06/16/26, Wife filed a Memorandum of Points and Authorities in opposition to Husband's
15 Request for Order asserting that Wife has resided in the property for approximately 14 years.
16 Further, Wife asserts that under Family Code section 753, a court is specifically foreclosed from
17 issuing an order excluding either spouse from the dwelling of the other spouse absent allegations
18 of domestic violence.
- 19 9) On 06/17/26, Wife filed a Proof of Service indicating that Husband was served with the
20 responsive pleadings on 06/16/26 by electronic service, which is timely service.
- 21 10) On 6/23/26, Husband filed a Reply Declaration reiterating his request. Husband refutes Wife's
22 position regarding the prenuptial agreement and believes Wife is intentionally causing delay.
23 Husband asserts his request is brought in good faith.
- 24 11) On 6/23/26, Husband filed a Reply Memorandum of Points and Authorities asserting the Court
25 has broad discretion regarding settlement of property rights under Family Code section 2010.

26 **B. Findings and Order**

- 27 1) Husband's Request for Order seeking exclusive occupancy of the residence located on 39
28 Princeton Street, San Francisco, CA 94134 is GRANTED.
- 29

- 2) The Court finds the plain language of the parties' prenuptial agreement clearly awards Husband the sole and exclusive use of the property pending dissolution given that it is undisputed that the property is his separate property.
- 3) Wife shall vacate the property by 9/30/26.
- 4) The Court declines to reserve jurisdiction over an award of sanctions against Husband.
- 5) Counsel for Husband shall prepare the Findings and Order After Hearing.
- 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).